



File No.: EXP202313041

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against ALTERNATIVA CORELLANA INDEPENDIENTE (ACI) with NIF G31782295 (hereinafter, the complained party), indications of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection were noted, leading to the initiation of actions under file number EXP202301249.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send this Agency the information and documentation indicated.

The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the timeframe for availability as stated in the acknowledgment of receipt in the file, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on February 14, 2023.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail on February 15, 2023, which was returned to sender as unknown, despite being sent to the tax address listed with the State Agency for Tax Administration.

On March 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent to the complained party regarding the complaint indicated in the first section, requesting that, within ten working days, they present to this Agency the information and documentation specified therein. The notification of this request was made by electronic means, with an outgoing registration number REGAGE23s00023896812, on April 13, 2023, resulting in expiration due to lack of appearance within the deadline, and therefore considered rejected in accordance with the provisions of Article 43.2 of the LPACAP. The same request was reiterated by postal means, resulting in a return to sender as unknown, despite being sent to the tax address listed with the State Agency for Tax Administration.

THIRD: After requesting contact details of the complained party from the City Council of Corella, on May 17, 2023, and with an outgoing registration number REGAGE23s00031399638, the aforementioned request for information and documentation was sent again to the complained party, this time by postal notification to the address provided by them. The request was collected by the complained party on May 24, 2023, as stated in the acknowledgment of receipt in the file.

FOURTH: On June 8, 2023, and with an incoming registration number REGAGE23e00036942970, a document was received in which the complained party, without providing the requested information and documentation, stated that "ACI is a grouping of voters. Electoral groupings are constituted solely and exclusively for a specific electoral process. Specifically, ACI was constituted for the previous electoral process of 2019, so with the call for elections on May 28, this grouping is considered extinguished."

However, it has been verified that in the Register of Associations, Foundations, and Professional Colleges of Navarra, the association ALTERNATIVA CORELLANA INDEPENDIENTE has been

registered since August 30, 2004, with registration number 4896 and classified as “Neighborhood and socio-community action.”

FIFTH: On June 20 and July 21, 2023, with outgoing registration numbers REGAGE23s00040097890 and REGAGE23s00049474560 respectively, a new request for information was sent to the complained party to present to this Agency the information and documentation specified therein within ten working days. Both postal notifications of this request, made in accordance with the rules established in the LPACAP, were collected by the complained party on June 27 and August 21, 2023, as stated in the acknowledgments of receipt in the file.

SIXTH: Regarding the requested information, the complained party has not sent a response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

SEVENTH: On October 3, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/9

EIGHTH: The aforementioned initiation agreement was received by the respondent on October 13, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: On October 31, 2023, with entry registration number REGAGE23e00073578426, the respondent submitted a written statement of allegations in response to the request for information made within the framework of file EXP202301249. Regarding the subject of the current sanctioning procedure, the respondent claims that “the Group did not receive requests until the agency addressed the City Council seeking an address to notify ACI, and when they were sent to the correct address, the summons and requests made were collected.

Thus, as evidenced in the facts of the resolution itself, upon the first receipt of the request on May 17, 2023, received by this party on May 24, a response was provided including the written statement of allegations in which an “error of action” is acknowledged, that the affected parties did not request rectification, and that upon detecting the error through communication from the AEPD, the data was removed from the blog where it was published, attaching the link for verification.

It was also stated that ACI is a group of voters through which the positions currently held in the City Council were accessed.

SECOND.- That the requests from June and July 2023 were not answered not because of an obstructive attitude, on the contrary, but because it was believed that the request from the AEPD had been fulfilled with the written statement of allegations and the rectification of the data.

Furthermore, during those dates, the City Council was being constituted and formed, and the deadlines granted were very difficult to meet given the attention and importance of the constitution of the City Council and, once the Mayor was elected, the organization of the Corporation.”

Additionally, the respondent states that it believes “there has been no infringement committed by ACI, since on one hand, a response was given to the AEPD regarding the request made confirming that the identification of data in the blog had been removed, and on the other hand, the second request was not answered because it was thought that the situation was already resolved and especially because the dates on which it occurred did not allow for a response.

This lack of response cannot be classified as stated in the resolution since it is demonstrated that there is no resistance or obstruction to the AEPD and its function, and consequently, the proposed sanction is neither appropriate nor justified as it does not correspond to facts that meet the specified classification.

In the event that it is understood that there is an infringement for lack of response to the AEPD (which we already state we do not believe), it would be merely formal, without any intent, which implies a very minor fault given the null impact on the rights of the officials and the action, based on the request from the AEPD, to proceed immediately to resolve the situation by removing the data from the blog.

C/ Jorge Juan, 6

4/9

The intention shown by this representative of ACI is not at all, and this is evident, to disobey the AEPD, nor to be rebellious in providing information, quite the opposite, and through this document and its attachments, it proceeds to fully comply with what is required in the received resolution.”

For the reasons stated, the respondent requests the filing of the sanctioning file as there is, it says, no classified infringement for which the procedure is initiated.

TENTH: On February 15, 2024, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection sanction the respondent for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €4,000.00.

Additionally, the procedure was made known so that within ten days the respondent could allege whatever they deemed appropriate in their defense and present the documents and information they considered pertinent, in accordance with Article 89.2 of the LPACAP.

ELEVENTH: The proposal for resolution was notified in accordance with the rules established in the LPACAP via electronic notification, not being collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, and therefore understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on February 26, 2024.

After the ten working days granted in the proposal for resolution for the submission of allegations, the respondent has not submitted any allegations.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: The requests for information indicated in the second, third, and fifth recitals were notified in accordance with the provisions of the LPACAP.

SECOND: The respondent has not sent the requested information in the requests for information made by this Agency within the framework of the investigative actions of file EXP202301249 prior to the issuance of the initiation agreement of the present sanctioning procedure.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent in accordance with the rules established in the LPACAP on October 13, 2023.

FOURTH: The respondent has submitted allegations to the initiation agreement of this sanctioning procedure described in the ninth recital.

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/9

FIFTH: The notification of the proposed resolution of this sanctioning procedure was not collected by the responsible party within the timeframe for availability, being understood as having been made on February 26, 2024.

SIXTH: The accused party has not submitted any allegations regarding the proposed resolution of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the accused party, the following should be noted:

Regarding the assertion by the accused party that "the requests from June and July 2023 were not answered not because of an obstructive attitude, on the contrary, but because they believed they had complied with the request of the AEPD with the written allegations and the rectification of the data," it should be noted that these requests were issued after the aforementioned written allegations and were made repeatedly; therefore, they cannot simply be ignored and considered answered with a prior document. Furthermore, the alleged confusion is unacceptable, as the accused party did not provide in their document a single one of the required data and documents, namely:

1. Identifying data of the holder of said blog (Name or corporate name and NIF).
2. Privacy policy and information provided to the interested parties referred to in Article 13 of the GDPR.
3. Procedure enabled for interested parties to oppose the publication of their personal data or to request the deletion of their data.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/9

4.

Copy of the Record of Treatment Activities, the risk analysis, and security measures implemented in relation to the processing of personal data."

Furthermore, the response to the information requests made during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement. Regarding the information communicated, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on its suitability.

With respect to the statement made by the respondent that the infringement of failure to respond "would be merely formal, without any intent," the following must be stated.

Certainly, the principle of responsibility provided for in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that: "Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, may be sanctioned for acts constituting administrative infringement, who are responsible for the same by way of intent or negligence."

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its ruling 76/1990, of April 26, the Constitutional Court has declared that objective or non-fault liability is not applicable in the administrative sanctioning field, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions solely based on the result is excluded, without demonstrating a minimum level of culpability even in terms of mere negligence. However, the manner of attributing responsibility to legal entities does not correspond to the forms of culpability that are imputable to human conduct, whether intentional or negligent.

Thus, and with this we enter into the examination of the reason, in the case of infringements committed by legal entities, including public administrations, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011, cassation appeal in the interest of law 48/2007), it is necessarily applied differently than it is with individuals. According to STC 246/1991 that we have just cited, "(...) this different construction of the imputability of the authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe

the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective and the risk that, consequently, the legal entity subject to compliance with that norm must assume.”

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/9

STS 6336/2009, of October 23, 2009, Rec 1067/2006, which states that "although the culpability of the conduct must also be subject to proof, it must be considered in relation to the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires that the absence of such elements be evidenced, or in its normative aspect, that due diligence has been exercised by the party claiming their non-existence; it is not sufficient, in summary, for exculpation against a typically unlawful behavior to invoke the absence of fault."

Consequently, the lack of culpability is dismissed as it is proven, as has also been acknowledged by the accused party, that it did not respond to the requests made by this Agency until the sanctioning procedure against it was initiated, thus calling into question the diligence employed and therefore the requested filing does not proceed.

III

Unfulfilled Obligation

In light of the facts presented, it is considered that the accused party has not provided the Spanish Agency for Data Protection with the information it requested within the deadlines granted for that purpose.

With the aforementioned conduct of the accused party, the investigative power that Article 58.1 of the GDPR grants to supervisory authorities, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the accused party, for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions;”

IV

Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement, attributable to the accused party.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/9

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative

powers.

o) Resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

V

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a coherent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

In light of the facts presented, it is considered appropriate to impose a sanction on the accused party for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of €4,000.00 (FOUR THOUSAND euros).

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ALTERNATIVA CORELLANA INDEPENDIENTE (ACI), with NIF G31782295, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €4,000.00 (FOUR THOUSAND euros).

SECOND: TO NOTIFY this resolution to ALTERNATIVA CORELLANA INDEPENDIENTE (ACI).

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that it must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

Spanish Agency for the Protection of Data at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the

aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for the Protection of Data, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for the Protection of Data

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es